

Smt. Asma Begam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 August 2012 · WRIT - C No. 37622 of 2012 · **Writ disposed of; petitioner relegated to clause 6.5.**

HEADNOTE

A consumer's writ seeking mandamus to withdraw an electricity arrears notice, and in substance disputing the bill, was disposed of by relegating her to an application under paragraph 6.5 of the Electricity Supply Code, 2005, to be decided in accordance with that Code.

FACTUAL SUMMARY

Smt. Asma Begam petitioned the High Court for a mandamus directing respondent no. 3 to withdraw a notice dated 12 July 2012 calling upon her to deposit alleged electricity arrears. She contended that she had already deposited the entire amount and that nothing remained due. The Court treated the writ as, in substance, a challenge to the bill raised by the distribution licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer disputes an arrears notice or electricity bill, the High Court will not issue mandamus to withdraw the notice; the statutory remedy is an application under paragraph 6.5 of the Electricity Supply Code, 2005, to be decided in accordance with that Code. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer's writ seeking mandamus to withdraw an electricity arrears notice, and in substance disputing the bill, was disposed of by relegating her to an application under paragraph 6.5 of the Electricity Supply Code, 2005, to be decided in accordance with that Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY ARREARS REMAINED DUE AFTER THE PETITIONER'S ALLEGED DEPOSITS

Merits of the bill and the 12 July 2012 notice left to the clause 6.5 authority. ¶ 1